

STATEMENT OF WORK / FRAMEWORK SERVICES

Framework Agreement – Kite & Anchor Creative Ltd

Contract reference : CR-2025-008
Document type : Framework Agreement
Status : signed
Date received : 2025-03-25
Date signed : 2025-04-11
Related contracts : CR-2025-030, CR-2026-007, CR-2026-034

PARTIES

- (1) Northgate Systems Ltd
- (2) Kite & Anchor Creative Ltd

RECITALS

- (A) Master framework for ongoing creative agency work (SOWs #2-#4 sit under this ; see CR-2025-030, CR-2026-007, CR-2026-034).
- (B) The commercial particulars are summarised below and, together with the stand ard terms and any negotiated amendments, form the whole agreement.

NOW IT IS AGREED as follows:

SUMMARY OF TERMS

Agency framework: SOW mechanism, rate card, revision rounds, IP, non-solicit, 24-month term.

TERMS AND CONDITIONS

1. FRAMEWORK AND INCORPORATION

This Statement of Work ("SOW") is issued under, and incorporates the terms of , the framework or master agreement identified in the Summary of Terms (the "Framework"). In the event of conflict, the Framework prevails except as to the commercial and deliverable-specific terms of this SOW.

2. SERVICES AND DELIVERABLES

The supplier shall provide the deliverables described in the Summary of Terms in accordance with the agreed schedule, acceptance criteria and the number of revision rounds stated. Additional work is subject to a change control note signed by both parties.

3. RATE CARD AND FEES

Fees are as stated in the Summary of Terms and, where applicable, the Framework rate card. Milestone fees are invoiced on acceptance of the relevant deliverable. Unless the Schedule of Negotiated Amendments records otherwise, payment terms are net thirty (30) days.

4. ACCEPTANCE

Northgate shall review each deliverable within a reasonable period and may accept it or provide reasonable details of non-conformance, in which case the supplier shall remedy and re-submit within the agreed revision rounds.

5. INTELLECTUAL PROPERTY

All intellectual property rights in the commissioned deliverables assign to Northgate on payment (Playbook §4.3; Copyright, Designs and Patents Act 1988, s.90). The supplier grants a non-exclusive licence to any background materials needed to use the deliverables and warrants that the deliverables do not infringe third-party rights.

6. CONFIDENTIALITY AND NON-SOLICITATION

Each party shall keep the other's confidential information confidential. Any mutual non-solicitation is limited to targeted solicitation and to the tail period stated in the Framework (POL-HR-003).

7. WARRANTIES AND LIABILITY

The supplier warrants that the Services will be performed with reasonable skill and care. Liability is governed by the Framework, including any caps and exclusions, subject to liabilities that cannot be limited at law.

8. TERM AND GOVERNING LAW

This SOW continues until the deliverables are accepted and paid for, unless terminated under the Framework, and is governed by the law of the Framework.

GENERAL PROVISIONS

A. INTERPRETATION

Clause headings do not affect interpretation. References to a statute or statutory

provision are to it as amended, extended or re-enacted from time to time and include subordinate legislation made under it. Words in the singular include the plural and vice versa, and "including" and "in particular" are illustrative and do not limit the words that precede them.

B. ENTIRE AGREEMENT

This agreement, together with the documents it incorporates and the Schedule of Negotiated Amendments, constitutes the entire agreement between the parties on its subject matter and supersedes all prior drafts, arrangements and understandings, whether written or oral. Each party acknowledges that it has not relied on any statement or representation not expressly set out in this agreement, save that nothing limits liability for fraud or fraudulent misrepresentation.

C. VARIATION AND WAIVER

No variation of this agreement is effective unless it is in writing and signed by an authorised representative of each party. No failure or delay by a party to exercise any right or remedy is a waiver of that or any other right or remedy, and no single or partial exercise prevents any further exercise.

D. ASSIGNMENT

Neither party may assign, transfer, charge, sub-contract or deal in any other manner with any of its rights or obligations under this agreement without the prior written consent of the other (such consent not to be unreasonably withheld or delayed), save that either party may assign to an affiliate or to a successor in connection with a bona fide reorganisation or sale of the relevant business.

E. SEVERANCE

If any provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable; if such modification is not possible, the relevant provision is deemed deleted. Any modification to or deletion of a provision does not affect the validity and enforceability of the rest of this agreement.

F. NOTICES

Any notice given under this agreement shall be in writing, addressed to the relevant party at its registered office or principal place of business (or such other address as notified), and delivered by hand, pre-paid first-class post or email to the address notified for that purpose. A notice is deemed received: if delivered by hand, on signature; if by post, at 9.00am on the second business day after posting;

and if
by email, on transmission, subject to confirmation of delivery.

G. FORCE MAJEURE

Neither party is in breach of this agreement or otherwise liable for any failure or delay in performance (other than a payment obligation) caused by an event beyond its reasonable control. The affected party shall notify the other and use reasonable endeavours to mitigate the effect. If the event continues for more than sixty (60) days, either party may terminate on written notice.

H. THIRD PARTY RIGHTS

Except as expressly stated in this agreement, a person who is not a party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement, and the consent of any third party is not required to vary or rescind it.

I. DISPUTE RESOLUTION AND ESCALATION

The parties shall attempt in good faith to resolve any dispute by escalation to their respective senior representatives within fourteen (14) days of written notice of the dispute. If the dispute is not resolved within a further thirty (30) days, either party may pursue its rights and remedies, without prejudice to either party's right to seek urgent injunctive relief at any time.

J. COUNTERPARTS AND ELECTRONIC SIGNATURE

This agreement may be executed in any number of counterparts, each of which when executed constitutes an original and all of which together constitute one and the same instrument. Execution by electronic signature is valid and binding.

SCHEDULE OF NEGOTIATED AMENDMENTS (TRACKED CHANGES)

This Schedule records each redline agreed against the standard form above, the counterparty position it replaced, and the policy or legislation relied on. It forms part of this agreement and prevails over the standard wording it varies.

AMENDMENT 1 [2025-03-31] - AMENDED

Clause affected: Intellectual Property

(+) Negotiated amendment:

+ Agency's licence-only IP position reversed to assignment on payment.

Governing basis: Playbook §4.3; Copyright, Designs and Patents Act 1988, s.90

AMENDMENT 2 [2025-04-04] - AMENDED

Clause affected: Non-Solicitation

(+) Negotiated amendment:

+ Mutual non-solicit limited to targeted poaching, 6-month tail.

Governing basis: POL-HR-003

AMENDMENT 3 [2025-04-09] – AMENDED
Clause affected: Payment Terms
(+) Negotiated amendment:
+ Payment terms aligned to net 30 from agency's net 14.
Governing basis: Playbook §2.4

EXECUTION

Executed by the parties on the dates set out below. This agreement may be signed
in
counterpart and by electronic signature.

Signed for and on behalf of Northgate Systems Ltd:

Signature: _____
Name: _____
Title: _____
Date: 2025-04-11

Signed for and on behalf of Kite & Anchor Creative Ltd:

Signature: _____
Name: _____
Title: _____
Date: 2025-04-11

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SIMULATED PLACEHOLDER CONTRACT – Northgate Systems Ltd corpus.

Generated from the contract register; not a real legal document.

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